

1 ENGROSSED HOUSE
2 BILL NO. 3132

By: West (Kevin), Crosswhite
Hader, and Maynard of the
House

3
4 and

5 Grellner of the Senate
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7 An Act relating to higher education; creating the
8 Selecting Neutral Accreditors Act; defining terms;
9 directing the board of regents of each institution of
10 higher education to review accrediting agencies to
11 determine if such agencies have adopted or used
12 certain diversity, equity, and inclusion practices or
13 procedures in connection with accreditation within
14 the past five years; requiring the board of regents
15 to begin the process to change accrediting agency if
16 practice or procedure is found; permitting board of
17 regents to select an accrediting agency who had
18 diversity, equity, and inclusion practices or
19 procedures within the past five years if the agency
20 formally repeals practice or procedure and certifies
21 the agency will not use practice or procedure in the
22 future; requiring the board of regents to report if
23 no qualifying accrediting agency is found; requiring
24 the board of regents to review applicable accreditors
for compliance prior to beginning any new
accreditation or pre-accreditation process or
renewal; authorizing Attorney General to request
information; finding presumption of diversity,
equity, and inclusion practices or procedures if
failure to respond by accrediting agency; authorizing
Attorney General to provide notice of presumption;
voiding certain agreements between institutions and
accrediting agencies; providing for investigation and
enforcement by Attorney General; providing for
noncodification; providing for codification; and
providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law not to be
3 codified in the Oklahoma Statutes reads as follows:

4 This act shall be known and may be cited as the "Selecting
5 Neutral Accreditors Act".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 3252 of Title 70, unless there
8 is created a duplication in numbering, reads as follows:

9 A. As used in this act:

10 1. "Accreditation" means the status of public recognition that
11 an accrediting agency grants to an educational institution, program,
12 or both that meets the agency's standards and requirements;

13 2. "Accrediting agency" means a person or governmental entity
14 that conducts accrediting activities and makes decisions concerning
15 the accreditation or pre-accreditation status of institutions,
16 programs, or both. Accrediting agency includes, but is not limited
17 to, any national, regional, or programmatic accrediting agency;

18 3. "Diversity, equity, and inclusion" means any differential
19 treatment of, or assignment of any fault or blame to, an individual
20 or group at an institution of higher education based on race, color,
21 ethnicity, national origin except as it relates to immigration
22 status under United States law, sex except as related to sex-
23 segregated facilities such as dormitories and bathrooms, or athletic
24 programs, sexual orientation, or gender identity;

1 4. "Diversity, equity, and inclusion practice or procedure"
2 means any initiative, policy, program, mandate, requirement,
3 standard, metric, statistic, or other practice or procedure related
4 to diversity, equity, and inclusion; and

5 5. "Institution of higher education" means a state educational
6 institution within The Oklahoma State System of Higher Education
7 including all of the state educational institution's programs,
8 departments, divisions, offices, centers, colleges, and schools and
9 any person acting on behalf of any of the state educational
10 institution's programs, departments, divisions, offices, centers,
11 colleges, and schools.

12 B. On or before July 1, 2027, the board of regents of each
13 institution of higher education shall review each of its accrediting
14 agencies to determine if any such agencies have adopted or used in
15 the past five (5) years any diversity, equity, and inclusion
16 practice or procedure in connection with accreditation. If so, the
17 board of regents shall promptly:

18 1. Begin the process to change to an accrediting agency that
19 has not adopted or used any diversity, equity, and inclusion
20 practice or procedure in the past five (5) years;

21 2. If there is no accrediting agency that meets the requirement
22 of paragraph 1 of this subsection for an institution or program, the
23 board of regents may select an accrediting agency that has adopted
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1 or used diversity, equity, and inclusion practices or procedures in
2 the past five (5) years if the accrediting agency:

- 3 a. formally repeals such practices or procedures, and
- 4 b. certifies to the board of regents and the Attorney
5 General in writing that such practices or procedures
6 will not be used in future accreditation standards,
7 reviews, or decisions; or

8 3. If there is no accrediting agency that meets the
9 requirements of paragraph 1 or 2 of this subsection for an
10 institution or program, the board of regents shall promptly:

- 11 a. report the findings to the Speaker of the Oklahoma
12 House of Representatives and the President Pro Tempore
13 of the Oklahoma State Senate,
- 14 b. review at least annually whether a qualifying
15 accreditor exists, and
- 16 c. if such an accreditor exists, promptly begin the
17 process to change to such accreditor.

18 C. Prior to beginning any new accreditation or pre-
19 accreditation process or renewal, the board of regents of each
20 institution of higher education shall review applicable accreditors
21 that could be selected and select an accrediting agency that has not
22 adopted or used any diversity, equity, and inclusion practice or
23 procedure in the preceding five (5) years from the date the
24 accreditation or pre-accreditation process or renewal commences. If

1 there is no accrediting agency that meets this requirement, the
2 board of regents shall proceed with the requirements in paragraphs 2
3 or 3 of subsection B of this section as applicable.

4 D. If an accrediting agency fails to fully respond to a request
5 by the board of regents or the Attorney General under this act,
6 including a voluntary request for information, there shall be a
7 presumption that the accrediting agency adopted or used a diversity,
8 equity, and inclusion practice or procedure within the preceding
9 five (5) years for purposes of this section. The Attorney General
10 shall provide notice to the board of regents and accrediting agency
11 of the Attorney General's determination of such failure to respond
12 and a ten-day opportunity to cure such failure.

13 E. Any agreement or understanding between an institution of
14 higher education or the board of regents and an accrediting agency
15 to circumvent or otherwise violate this act shall be void. The
16 Attorney General shall have the same investigative and enforcement
17 powers as are provided in the Oklahoma Deceptive Trade Practices Act
18 related to any institution of higher education, accrediting agency,
19 or person for which there is reason to believe the institution,
20 accrediting agency, or person violated or participated in the
21 violation of this act.

22 SECTION 3. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 26th day of March, 2026.

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4 Presiding Officer of the House
of Representatives

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6 Passed the Senate the ____ day of _____, 2026.

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8 Presiding Officer of the Senate